IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

| | | |
|---|---|---|
| IN RE THE MARRIAGE OF: | ) | |
| | ) | |
| JOEL THORARINSON, | ) | |
| Petitioner/Counter-Respondent, | ) | |
| | ) | No. 2024 D 6724 |
| v. | ) | |
| | ) | Cal. 11 |
| HEATHER KIM ATAGAN, | ) | |
| Respondent/Counter-Petitioner. | ) | |

**EMERGENCY MOTION TO SET HEARING *INSTANTER***

NOW COMES the Respondent/Counter-Petitioner, HEATHER ATAGAN (hereinafter, "HEATHER"), by and through her attorneys, FITZPATRICK TARARA FAMILY LAW, LLC, pursuant to 750 ILCS 5/501, in support of her EMERGENCY MOTION TO SET HEARING *INSTANTER*, HEATHER states as follows:

**STATEMENT OF EMERGENCY**

This matter is an emergency as JOEL has continued to refuse to pay temporary support to HEATHER consistent with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, and **JOEL's arrearage now totals approximately $67,359.00**. Due to JOEL's failure to pay support, HEATHER has been unable to ensure the mortgage payments for the marital residence are paid and the current unpaid balance is $13,177.92. Further, **HEATHER has received notice that if the outstanding balance on the mortgage is not paid, the bank shall proceed with a foreclosure action on or about March 1, 2026**.

Since the entry of the AGREED ORDER on April 30, 2025, **JOEL has dissipated at least $261,398.56 in marital funds to maintain his lavish lifestyle.** Specifically, JOEL has been able to travel the world, and transfer significant sums of money to third parties including multiple women who upon information and belief are JOEL's various paramours. From April 30, 2025, through October 2025, JOEL traveled to Mallorca, Calgary, North Carolina, Virginia, Reykjavik, New York City, California, and Lisbon, as confirmed by his bank and credit card statements. Upon information and belief, JOEL has also recently traveled to Singapore and Vietnam.

**Conversely, HEATHER and the minor children face eviction from their home and HEATHER is unable to purchase day-to-day necessities like groceries and school supplies without borrowing money from her family.**

Further, and despite JOEL's claims that he lacks the funds to maintain his temporary support obligations, since May 1, 2025, JOEL has withdrawn, transferred, or otherwise disposed of appropriately $119,388.22 from the Joint JP Morgan Checking Account x2151, an account that JOEL is prohibited from transacting in per the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025. JOEL is well able to ensure the marital residence is not foreclosed upon as he clearly has access to sufficient funds to pay temporary support, including his significant arrearage.

On October 28, 2025, HEATHER filed her SECOND VERIFIED PETITION FOR ADJUDICATION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF, at which time JOEL's arrearage totaled approximately $31,359.00. JOEL's failure to make any payments toward the mortgage or temporary support has necessitated the filing of this *instant* emergency motion as JOEL must be immediately required to become current on his temporary support obligation and pay to HEATHER the sum of $67,359.00 in order for HEATHER to become current on mortgage and have access to funds to support herself and the parties' minor children.

Further, the provisions of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS must be modified such that JOEL is prohibited from transacting in any way with the Joint JP Morgan Checking Account. Additionally, JOEL has been funding his improper transactions in the Joint JP Morgan Checking Account by transferring funds from his Revolut bank account. Upon information and belief, the Revolut account is well funded and receives JOEL's severance payments from his former employer. HEATHER must immediately be added to said account and JOEL must also be prohibited from transacting in the Revolut account.

During the pendency of these proceedings, JOEL has been able to travel the world, spend lavishly, and dissipate vast amounts of marital assets. Conversely, HEATHER and the children have been forced to borrow money from family members in order to avoid the marital residence being foreclosed upon and to pay day-to-day living expenses. **Currently, HEATHER and the children face impending foreclosure and eviction from the marital residence where they all reside, and HEATHER is unable to pay for the children's day-to-day expenses including groceries and for school supplies.**

The Court must immediately intervene to ensure that the children's needs are met and compel JOEL's compliance with Court orders. The Court must also modify the current orders to ensure JOEL is prohibited for further dissipating marital assets which must be used to pay the mortgage for the marital residence and for the child's day-to-day expenses. HEATHER has been forced incurred

significant attorneys' fees attempting to compel JOEL's compliance with Court orders and as such, JOEL must be required to reimburse HEATHER for the same.

## FACTS COMMON TO ALL COUNTS

1. The parties were married on August 10, 2008, in Calgary, Alberta, Canada, where the marriage was duly registered.

2. Two (2) children were born to the parties during the marriage, namely: Ariana, born April 2, 2010, currently fifteen (15) years of age; and Roman, born September 19, 2012, currently thirteen (13) years of age. No other children were born to the parties or adopted, and HEATHER is not currently pregnant.

3. On September 9, 2024, JOEL filed a PETITION FOR DISSOLUTION OF MARRIAGE ("PETITION FOR DISSOLUTION") which remains pending and undetermined before the Court.

4. On April 30, 2025, the Court entered the AGREED ORDER: TEMPORARY FINANCIAL MATTERS requiring JOEL to pay temporary support to HEATHER and restraining JOEL's transactions in marital accounts. Said agreed orders are attached herein as **Exhibit A**.

5. On May 19, 2025, HEATHER filed her first VERIFIED PETITION FOR ADJUDICATION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF for JOEL's failure to comply with numerous agreed orders.

6. On October 28, 2025, HEATHER filed her SECOND VERIFIED PETITION FOR ADJUDICTION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF for JOEL's continued failure to comply with agreed orders.

## COUNT I – MOTION TO SET HEARING *INSTANTER*

7. The AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, states in Paragraph 2(a)-2(c) as follows:

**"2. Temporary Support:**

a. Without prejudice to either party and without prejudice to any claim of retroactive maintenance and/or child support, contribution to child-related expenses, and contribution to other marital expenses, and recalculation of any maintenance or child support, retroactive or otherwise, JOEL shall pay to HEATHER the amount of $10,000.00, as and for temporary maintenance on or before the 1st of each month, beginning May 1, 2025. Accordingly, JOEL shall deposit $10,000.00 into the Joint JP Morgan Checking Account x2151 before 5:00pm on the 1st of each month until further order or court.

b. In the event that JOEL receives any additional income that exceeds his base salary of $250,000.00 gross income per year, JOEL shall transfer fifty-percent (50%) of the

same to the Joint JP Morgan Checking Account x2151 and a paystub evidencing JOEL's receipt of said bonus within fourteen (14) days of receipt of the same.

c. JOEL shall not access, transact, transfer, withdraw, or otherwise engage with the JP Morgan Checking Account x2151 excluding the deposits detailed herein."

See **Exhibit A.**

8. On April 30, 2025, JOEL deposited $10,000.00 into the Joint JP Morgan Checking Account x2151 in compliance with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025.

9. Since April 30, 2025, JOEL has made the following deposits into the Joint JP Morgan Checking Account x2151 and allowed said sums to remain in the account until HEATHER was able to transfer them to her individual account.

| **Support Payments per 4/30/25 Agreed Order - Temporary Financial Matters** | | |
|---|---|---|
| **Date** | **Amount Due** | **Amount Paid** |
| 5/1/2025 | $10,000.00 | $10,000.00 |
| 6/1/2025 | $10,000.00 | $4,000.00 |
| 7/1/2025 | $10,000.00 | $7,000.00 |
| 8/1/2025 | $10,000.00 | |
| 9/1/2025 | $10,000.00 | $8,500.00 |
| 10/1/2025 | $10,000.00 | $3,141.00 |
| 11/1/2025 | $10,000.00 | |
| 12/1/2025 | $10,000.00 | |
| 1/1/2026 | $10,000.00 | |
| 2/1/2026 | $10,000.00 | |
| **Total** | **$100,000.00** | **$32,641.00** |
| **Amount Owed** | **$67,359.00** | |

10. Accordingly, **JOEL owes to HEATHER $67,359.00** as and for unpaid temporary support from May 1, 2025, through present.

11. Based on JOEL's transactions in the Joint JP Morgan Account, JOEL has access to significant funds.

12. JOEL has engaged in a pattern of depositing funds into the joint account and immediately paying said funds to his personal credit cards or transferring the funds out of the account ensuring HEATHER is unable to access the funds deposited.

13. Following this pattern, JOEL has transferred or paid his personal credit cards in the amount of $119,388.22 from May 1, 2025, through present.

14. Since July 2025, HEATHER has been unable to timely ensure the mortgage for the marital residence is paid. A summary of the mortgage payments since April 1, 2024, through present is attached herein as **Exhibit B.**

15. On August 1, 2025, and September 19, 2025, HEATHER depleted her accounts and borrowed money from her mother to make payments towards the mortgage. See **Exhibit B.**

16. On December 10, 2025, HEATHER received a Notice of Intent to Foreclose from the bank stating that if the past due amount of $13,495.94 is not paid by January 14, 2026, the bank would proceed with foreclosure. Said Notice of Intent to Foreclose is attached herein as **Exhibit C.**

17. On January 2, 2026, and February 19, 2026, JOEL's family contributed to the payment of the mortgage. See **Exhibit B.**

18. On January 23, 2026, HEATHER applied for mortgage assistance from Chase Bank but was unable to obtain assistance due to JOEL refusing to sign the application.

19. On February 5, 2026, HEATHER again applied for mortgage assistance from Chase Bank but as JOEL has continued to refuse to cooperate with the process, it is unlikely that the application will be approved and as such, the bank will proceed with the foreclosure action beginning March 1, 2026. See letter from Chase Bak dated February 5, 2026, attached herein as **Exhibit D.**

20. The amount due on the mortgage for the marital residence is $13,177.92. See **Exhibit B.**

21. JOEL has demonstrated he is well able to pay temporary support to HEATHER as he has been able to pay or transfer approximately $119,388.22 in and out of the joint account during the time JOEL has refused to pay temporary support.

22. Accordingly, HEATHER's FIRST VERIFIED PETITION FOR ADJUDICTION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF and SECOND VERIFIED PETITION FOR ADJUDICTION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF must be heard *instanter* to ensure the marital residence is not foreclosed upon.

23. HEATHER has incurred attorney's fees and costs in the preparation and presentation of this motion, which was necessitated solely as a result of JOEL's failure to comply with the Court orders.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER ATAGAN, respectfully requests that this Honorable Court:

A. Immediately proceed with a hearing on HEATHER ATAGAN's FIRST VERIFIED PETITION FOR ADJUDICTION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF

and SECOND VERIFIED PETITION FOR ADJUDICTION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF;

B. Award HEATHER ATAGAN reasonable attorney's fees and costs expended in compelling JOEL ATAGAN's compliance with Court orders in accordance with Section 508(b) of the IMDMA, 750 ILCS 5/508(b); and

C. Order such other and further relief as this Court deems just and equitable.

**COUNT II: MOTION TO MODIFY TEMPORARY RESTRAINING ORDER**

24. HEATHER restates and realleges Paragraphs 1-23 as though fully restated verbatim herein as Paragraph 24.

25. The AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, states in pertinent portion as follows:

**"1. Temporary Restraining Order:**

a. Effective immediately, the Petitioner/Counter-Respondent, JOEL THORARINSON, is hereby restrained from accessing, transacting, withdrawing, transferring, dissipating or otherwise engaging with funds held in the parties' marital bank accounts, investment accounts, brokerage accounts, retirement accounts, stocks, bonds, life insurance policies, and the like, including but not limited to accounts held at JP Morgan Chase Bank, and Revolut Bank, until further order of Court.

b. JOEL's Revolut Checking Account x 9026and the Joint JP Morgan Checking Account x2151 shall not be restrained by the terms of this *instant* order.

c. JOEL's Revolut Checking Account x 9026 and the Joint JP Morgan Checking Account x2151 shall only be utilized by the parties for the payment of expenses consistent with the status quo established during the parties' marriage. Any expenses not consistent with the status quo shall be agreed upon by the parties in writing, through counsel, prior to the payment of said expenses.

d. Counsel for the Respondent/Counter-Petitioner shall serve this instant order to any and all financial institutions where it is believed that marital assets are currently held or were previously held."

See **Exhibit A.**

26. Since the entry of the April 30, 2025, AGREED ORDER: TEMPORARY FINANCIAL MATTERS, JOEL has regularly transacted in the Joint JP Morgan account including but not limited to paying off his individual credit cards, transferring funds to friends and other third parties, and withdrawing funds to accounts that HEATHER does not have access to.

27. JOEL has also made significant transactions in an Empower account, a Joint JP Morgan

Savings Account. Specifically, JOEL has transferred, withdrawn, or otherwise dissipated signification marital funds as detailed in HEATHER's SECOND VERIFIED PETITION FOR ADJUDICTION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF.

28. Since May 1, 2025, JOEL has deposited $169,862.55 into the Joint JP Morgan Account and has withdrawn $119,388.22 from said account in violation of the temporary restraining order. A summary of said transactions is attached herein as **Exhibit E.**

29. Of said deposits, $34,131.00 has been deposited by JOEL from his Revolut bank account that HEATHER does not have access to and that upon information and belief, receives JOEL's severance payments from his former employer.

30. Another $63,567.26 has been deposited into the Joint JP Morgan Account by JOEL from unknown sources.

31. JOEL also deposited another $72,155.29 from his Empower account that HEATHER does not have access to.

32. Based on the same, JOEL has access to significant funds that HEATHER does not have access to and/or have not been disclosed by JOEL.

33. Accordingly, the AGREED ORDER: TEMPORARY FINANCIAL MATTERS must be modified such that JOEL is restrained from transacting in any way in any marital accounts.

34. Additionally, HEATHER must immediately be given access to JOEL's Revolut bank account which appears to be well funded and receiving JOEL's severance payments from his former employer.

35. HEATHER has incurred attorney's fees and costs in the preparation and presentation of this motion, which was necessitated solely as a result of JOEL's failure to comply with Court orders.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER ATAGAN, respectfully requests that this Honorable Court:

A. Immediately enter an Order prohibiting JOEL THORARINSON from accessing, transacting, withdrawing, transferring, dissipating or otherwise engaging with funds held in the parties' marital bank accounts, investment accounts, brokerage accounts, retirement accounts, stocks, bonds, life insurance policies, and the like;

B. Immediately enter an Order requiring JOEL THORARINSON to add HEATHER ATAGAN as an account owner and authorized user for his Revolut bank account;

C. Award HEATHER ATAGAN reasonable attorney's fees and costs expended in compelling JOEL ATAGAN's compliance with Court orders in accordance with Section 508(b) of the IMDMA, 750 ILCS 5/508(b); and

D. Order such other and further relief as this Court deems just and equitable.

Respectfully Submitted,
FITZPATRICK TARARA FAMILY LAW, LLC

ANNEMARIE TARARA

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
35 E. Wacker Drive, Suite 650
Chicago, IL 60601
(312) 588-9773
Atty. No. 103060
Notice@ftfamilylawyers.com

## VERIFICATION

Under penalties as provided by law pursuant to 735 ILCS 5/1-109, I, **HEATHER KIM ATAGAN,** being first duly sworn and on oath depose and state that I am the Respondent/Counter-Petitioner in the above-captioned matter; that I have read the foregoing pleading and have knowledge of the contents thereof; and that the statements set forth in this instrument are true and correct, except as to matters therein stated to be on information and belief and as to such matters I certify as aforesaid that I verily believe the same to be true.

**HEATHER KIM ATAGAN**
**Respondent/Counter-Petitioner**

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
35 E. Wacker Drive, Suite 650
Chicago, IL 60601
(312) 588-9773
Atty. No. 103060
Notice@ftfamilylawyers.com

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

| | | |
|---|---|---|
| IN RE THE MARRIAGE OF: | ) | |
| | ) | |
| JOEL THORARINSON, | ) | |
| Petitioner/Counter-Respondent, | ) | |
| | ) | No. 2024 D 6724 |
| v. | ) | |
| | ) | Cal. 11 |
| HEATHER KIM ATAGAN, | ) | |
| Respondent/Counter-Petitioner. | ) | |

**AFFIDAVIT IN SUPPORT OF EMERGENCY MOTION TO SET HEARING *INSTANTER***

I, HEATHER KIM ATAGAN, the Affiant, first being duly sworn on oath, depose and state as follows:

1. That I am the Respondent/Counter-Petitioner in the above-captioned matter.

2. I swear and affirm that all allegations contained in the aforementioned Motion are true and accurate.

Further, Affiant sayeth naught.

HEATHER KIM ATAGAN

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
35 E. Wacker Drive, Suite 650
Chicago, IL 60601
(312) 588-9773
Atty. No. 103060
Notice@ftfamilylawyers.com

EXHIBIT A

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

| | | |
|---|---|---|
| IN RE THE MARRIAGE OF | ) | |
| | ) | |
| JOEL THORARINSON, | ) | |
| Petitioner/Counter-Respondent, | ) | |
| | ) | No. 2024 D 6724 |
| v. | ) | |
| | ) | Cal. 11 |
| HEATHER KIM ATAGAN, | ) | |
| Respondent/Counter-Petitioner. | ) | |

**AGREED ORDER:**
**TEMPORARY FINANCIAL MATTERS**

THIS MATTER coming before the Court by agreement of the parties; both parties being represented by counsel, the Court having jurisdiction over the subject matter hereof and the parties hereto; and the Court being duly and fully advised in the premises:

**IT IS HEREBY ORDERED:**

1) **Temporary Restraining Order:**

a) Effective immediately, the Petitioner/Counter-Respondent, JOEL THORARINSON, is hereby restrained from accessing, transacting, withdrawing, transferring, dissipating or otherwise engaging with funds held in the parties' marital bank accounts, investment accounts, brokerage accounts, retirement accounts, stocks, bonds, life insurance policies, and the like, including but not limited to accounts held at JP Morgan Chase Bank, and Revolut Bank, until further order of Court.

b) JOEL's Revolut Checking Account x 9026 and the Joint JP Morgan Checking Account x2151 shall not be restrained by the terms of this *instant* order.

c) JOEL's Revolut Checking Account x 9026 and the Joint JP Morgan Checking Account x2151 shall only be utilized by the parties for the payment of expenses consistent with the status quo established during the parties' marriage. Any expenses not consistent with the status quo shall be agreed upon by the parties in writing, through counsel, prior to the payment of said expenses.

d) Counsel for the Respondent/Counter-Petitioner shall serve this instant order to any and all financial institutions where it is believed that marital assets are currently held or were previously held.

2) **Temporary Support:**

a) Without prejudice to either party and without prejudice to any claim of retroactive maintenance and/or child support, contribution to child-related expenses, and contribution



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to other marital expenses, and recalculation of any maintenance or child support, retroactive or otherwise, JOEL shall pay to HEATHER the amount of $10,000.00, as and for temporary maintenance on or before the 1st of each month, beginning May 1, 2025. Accordingly, JOEL shall deposit $10,000.00 into the Joint JP Morgan Checking Account x2151 before 5:00pm on the 1st of each month until further order or court.

b) In the event that JOEL receives any additional income that exceeds his base salary of $250,000.00 gross income per year, JOEL shall transfer fifty-percent (50%) of the same to the Joint JP Morgan Checking Account x2151 and a paystub evidencing JOEL's receipt of said bonus within fourteen (14) days of receipt of the same.

c) JOEL shall not access, transact, transfer, withdraw, or otherwise engage with the JP Morgan Checking Account x2151 excluding the deposits detailed herein.

3) **Interim Attorneys' Fees:**

a) An interim fee award of $15,000.00 is entered in favor of HEATHER ATAGAN, to be paid by JOEL THORARINSON to HEATHER's counsel, MEREL FAMILY LAW, for reasonable attorney's fees and costs.

b) By 5:00pm on May 1, 2025, JOEL THORARINSON shall tender a $15,000.00 payment directly to MEREL FAMILY LAW as and for interim attorney's fees and costs.

c) By 5:00 p.m. on May 1, 2025, JOEL THORARINSON shall pay $15,000.00 to THE LAW OFFICES OF JOHN CONNIFF as and for interim attorneys fees and costs.

d) The assessment of the interim fee award is without prejudice to any final allocation and without prejudice as to any claim or right of either party.

**AGREED:**

JOEL THORARINSON

HEATHER ATAGAN

**ENTERED:**

JUDGE

2302

4-30-25

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
440 W. Randolph St., 5th Floor
Chicago, IL 60606
(312) 408-7000
notice@merelfamilylaw.com
Attorney No. 45550
Counsel for Petitioner/Counter-Respondent:: jconniff@jacfamilylaw.com

ENTERED
Judge Matthew Jannusch-2302
APR 30 2025
CLERK OF THE CIRCUIT COURT OF COOK COUNTY, IL
Deputy Clerk



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CHASE for BUSINESS®

EXHIBIT B

Printed from Chase for Business

# MORTGAGE LOAN (...1823)

## $414,651.05

Principal balance

| Dec 1, 2025 | $13,177.92 | Off |
|---|---|---|
| Payment due date | Amount due | Automatic payments |

## Transactions

### Posted

| Date | Description | Amount | Unapplied | Balance |
|---|---|---|---|---|
| Feb 6, 2026 | LATE CHARGE WAIVED | –$636.04 | $0.00 | $414,651.05 |
| Feb 4, 2026 | PAYMENT | $4,392.64 | $0.00 | $414,651.05 |
| Jan 16, 2026 | LATE CHARGE | $159.01 | $0.00 | $415,407.99 |
| Jan 2, 2026 | PAYMENT | $4,392.64 | –$4,392.64 | $415,407.99 |
| | PAYMENT | $4,392.64 | $4,392.64 | $416,160.54 |
| Dec 20, 2025 | Inspection/Property Maintenance Cost - Disbursement | $20.00 | $0.00 | $416,160.54 |
| Dec 16, 2025 | LATE CHARGE | $159.01 | $0.00 | $416,160.54 |
| Dec 1, 2025 | RETURNED ITEM | –$4,392.64 | $0.00 | $416,160.54 |
| | PAYMENT | $4,392.64 | $0.00 | $415,407.99 |
| Nov 25, 2025 | COUNTY TAX | –$6,642.35 | $0.00 | $416,160.54 |

| Date | Description | Amount | Unapplied | Balance |
|---|---|---|---|---|
| Nov 17, 2025 | LATE CHARGE | $159.01 | $0.00 | $416,160.54 |
| Nov 1, 2025 | RETURNED ITEM | –$4,392.64 | $0.00 | $416,160.54 |
| | PAYMENT | $4,392.64 | $0.00 | $415,407.99 |
| Oct 16, 2025 | LATE CHARGE | $159.01 | $0.00 | $416,160.54 |
| Oct 1, 2025 | RETURNED ITEM | –$4,392.64 | $0.00 | $416,160.54 |
| | PAYMENT | $4,392.64 | $0.00 | $415,407.99 |
| Sep 19, 2025 | LATE CHARGE PAID | $4,734.31 | $0.00 | $416,160.54 |
| Sep 16, 2025 | LATE CHARGE | $159.01 | $0.00 | $416,908.72 |
| Sep 1, 2025 | RETURNED ITEM | –$4,575.30 | $0.00 | $416,908.72 |
| | PAYMENT | $4,575.30 | $0.00 | $416,160.54 |
| Aug 15, 2025 | PRINCIPAL PAYMENT | $159.01 | –$159.01 | $416,908.72 |
| | LATE CHARGE PAID | $4,734.31 | $0.00 | $417,067.73 |
| Aug 11, 2025 | RETURNED ITEM | $0.00 | –$4,575.30 | $417,810.65 |
| Aug 1, 2025 | LATE CHARGE REVERSAL | –$4,734.31 | $4,734.31 | $417,810.65 |
| | LATE CHARGE PAID | $4,734.31 | $0.00 | $417,067.73 |
| | PAYMENT | $4,575.30 | $0.00 | $417,810.65 |
| Jul 16, 2025 | LATE CHARGE | $159.01 | $0.00 | $418,549.26 |
| Jul 1, 2025 | RETURNED ITEM | –$4,575.30 | $0.00 | $418,549.26 |
| | PAYMENT | $4,575.30 | $0.00 | $417,810.65 |
| Jun 1, 2025 | PAYMENT | $4,575.30 | $0.00 | $418,549.26 |

| Date | Description | Amount | Unapplied | Balance |
|---|---|---|---|---|
| May 1, 2025 | ARM ADJUSTMENT | $0.00 | $0.00 | $419,283.59 |
| | PAYMENT | $4,835.07 | $0.00 | $419,283.59 |
| Apr 1, 2025 | PAYMENT | $4,835.07 | $0.00 | $419,924.02 |
| Mar 1, 2025 | PAYMENT | $4,835.07 | $0.00 | $420,560.21 |
| Feb 12, 2025 | COUNTY TAX | –$7,488.23 | $0.00 | $421,192.18 |
| Feb 1, 2025 | PAYMENT | $4,835.07 | $0.00 | $421,192.18 |
| Jan 1, 2025 | PAYMENT | $4,835.07 | $0.00 | $421,819.97 |
| Dec 1, 2024 | PAYMENT | $4,835.07 | $0.00 | $422,443.60 |
| Nov 1, 2024 | PAYMENT | $4,835.07 | $0.00 | $423,063.10 |
| Oct 1, 2024 | PAYMENT | $4,835.07 | $0.00 | $423,678.50 |
| Sep 1, 2024 | PAYMENT | $4,462.53 | $0.00 | $424,289.82 |
| Aug 1, 2024 | ESCROW ADVANCE RECOVERY | –$633.74 | $0.00 | $424,897.09 |
| | PAYMENT | $4,462.53 | $0.00 | $424,897.09 |
| Jul 12, 2024 | ESCROW ADVANCE | $633.74 | $0.00 | $425,500.34 |
| | COUNTY TAX | –$6,527.39 | $0.00 | $425,500.34 |
| Jul 1, 2024 | PAYMENT | $4,462.53 | $0.00 | $425,500.34 |
| Jun 1, 2024 | PAYMENT | $4,462.53 | $0.00 | $426,099.60 |
| May 1, 2024 | ARM ADJUSTMENT | $0.00 | $0.00 | $426,694.89 |
| | PAYMENT | $3,937.25 | $0.00 | $426,694.89 |
| Apr 1, 2024 | PAYMENT | $3,937.25 | $0.00 | $427,472.17 |

This information may not reflect your most recent transactions.

JPMorgan Chase Bank, N.A. Member FDIC ©2026 JPMorgan Chase & Co Equal Opportunity Lender

**Chase (Mail Code LA4-6953)**
700 Kansas Lane
Monroe, LA 71203
For Undeliverable Mail Only

CHASE

EXHIBIT C

12/10/2025

000536 - 1 of 2 NSP0HDLA-Z5 J9173209 000000000000

HEATHER ATAGAN
[redacted]DR E
WILMETTE, IL 60091

3434187001005005360010000000

**Please read this important information about the status of your loan**

Account: [redacted]823 (the "loan")
Property Address: [redacted]E
WILMETTE, IL 60091 (the "property")

Dear HEATHER ATAGAN:

We want you to be aware of the next steps that may occur if your loan is not brought up to date by 01/14/2026. We understand this may be a difficult time and want you to know that we're here to help if you're having trouble making your payment. Please read this letter carefully and call us at 1-800-848-9380 if you have questions.

**Acceleration Warning (Notice of Intent to Foreclose)**

Under the terms of your loan agreement, mortgage or deed of trust (Security Instrument) securing your loan, we (JPMorgan Chase Bank, N.A. or Chase) are notifying you of the following:

1. **Your loan is in default** because we haven't received the required monthly payments starting with the payment due 10/01/2025.

2. **As of 12/10/2025, the total amount past due is $13,495.94.**
   This includes total past due monthly payments of principal, interest and escrow (if applicable), late fees, insufficient funds (NSF) fees, and other fees and advances due under the terms of your loan documents. The past-due amount is detailed below. If applicable, you may be responsible for additional escrow amounts that we may pay from the date of this letter. If you have questions about the amounts detailed below, please call us as soon as possible.

| | |
|---|---|
| Total Monthly Payments: | $13,177.92 |
| Late Fees: | $318.02 |
| NSF Fees: | $0.00 |
| Other Fees:[1] | $0.00 |
| Advances:[1] | $0.00 |
| Amount Held in Suspense: | $0.00 |

[1] *Other Fees and Advances include those amounts assessed in accordance with your*

This is an attempt to collect a debt and any information obtained will be used for that purpose.

*loan documents, and/or permitted by applicable law, or that were authorized for services rendered.*

You are also responsible for paying any amounts that become due from the date of this letter. This may include; taxes, insurance, inspection fees, and other fees and charges, as permitted by applicable law.

If you disagree with the past-due amount listed above, or if you believe your loan is current, please call us.

3. **You have the right to cure the default. Action required to cure the default:**
   You must pay the total monthly payments minus suspense, $13,177.92, by 01/14/2026 in order to cure this default. All late fees, NSF fees, and other fees and advances are still valid and will need to be paid under the terms of your loan documents.

4. **Here's what may happen if you fail to cure the default on or before 01/14/2026**
   - We may require payment of your loan balance in full (accelerate the maturity of the loan by declaring all sums secured by the Security Instrument immediately due and payable).
   - Close (terminate) your credit line if the loan provides for revolving advances.
   - Begin foreclosure by judicial proceeding, and conduct a sale of the property. If this happens, we may be entitled to collect expenses incurred in pursuing the remedies provided in the Security Instrument, which may include, but not be limited to, allowable foreclosure/attorney fees, and other expenses permitted by your loan documents or applicable law.

5. You have the right to reinstate after acceleration of the loan and the right to assert in the foreclosure proceeding the nonexistence of a default, or any other defense to acceleration, foreclosure, and sale. However, the amount required to reinstate may be higher than what is owed under Paragraph 2 above due to additional fees and charges that we may be entitled to collect under the loan documents and applicable law, including attorney fees related to any foreclosure action we initiate.

6. Please note that foreclosure will not be commenced until your loan is at least 120 days past due, or otherwise as allowed by applicable law.

7. If your personal liability for this account has not been discharged in a bankruptcy proceeding and if permitted by law, a deficiency judgment may be pursued if your account is referred to foreclosure.

8. **Important information for Rural Housing Service-Guaranteed Loans**
   The Rural Housing Service may reimburse us (pay us a loss claim) if the default is not cured by the date referenced above and the account is referred to foreclosure. You may be responsible for repaying this claim to the Rural Housing Service. If your personal liability for this account has not been discharged in a bankruptcy, the Rural Housing Service may use all options, including those under the Debt Collection Improvement Act (DCIA) to recover the full amounts due. The DCIA provides for the collection of outstanding federal debts through the Treasury Offset Program which allows federal payments such as Social Security benefits to be reduced or "offset" in order to repay the outstanding debt.

9. **Here's information on how to make your payment of $13,177.92**
   - Visit chase.com/WaysToPay for information on making online payments.
   - Call us to make your payment over the phone, free of charge.
   - Make your payment at a Chase branch.
   - Mail your payment to one of the addresses below.

Regular Mail: CHASE
PO BOX 71244
PHILADELPHIA, PA 19176-6244

Overnight Mail: CHASE
PO BOX 71244 400 WHITE CLAY CENTER DRIVE
NEWARK, DE 19711

If we've received six insufficient funds (NSF) payments in the last six months, certified funds are required and payments must be received by mail or in a Chase branch.

Except as required by law, we are not required to accept less than the full amount owed. If we receive less than the full amount owed, we may apply it to your loan without waiving any default or waiving our right to accelerate the loan and begin foreclosure.

10. **Assistance options may be available to help you.** We have a variety of homeowner assistance options that might help you keep your home; however, we need to talk with you to discuss these options and determine which of them might be appropriate for your circumstances. Please call us as soon as possible at 1-800-848-9380 or write to us at:

    Overnight/Regular Mail: Chase
    Attn: Collections Department
    Mail Code OH4-7356
    3415 Vision Drive
    Columbus, OH 43219-6009

11. **We may complete property inspections while the loan remains in default.** Property inspections may be done to determine the property condition, occupancy status and possibly your plans for curing the default and paying this loan on time. Any costs incurred by us may be added to the amount you now owe if permitted by your loan documents or applicable law.

**Here's where to look for help**

You can find additional resources below to help you with your mortgage:

- The Homeowners HOPE Hotline can take your call anytime at 1-888-995-HOPE (1-888-995-4673).
- The U.S. Department of Housing and Urban Development (HUD) has a list of agencies that offer free mortgage-assistance counseling. For a list of agencies, call HUD at 1-800-569-4287, or 1-800-877-8339 for TTY services, or go to hud.gov/counseling.

If you have questions, please call us; we accept operator relay calls. We're here to help Monday through Friday from 8 a.m. to 8 p.m., and Saturday from 9 a.m. to 6 p.m. Eastern Time.

Sincerely,

Chase
1-800-848-9380
chase.com

Esta comunicación contiene información importante acerca de la cuenta. Si tiene alguna pregunta o necesita ayuda para traducirla, comuníquese con nosotros llamando al 1-800-848-9380, de lunes a viernes de 8 a.m. a 8 p.m. y sábados de 9 a.m. a 6 p.m., hora del Este.

**Important Legal Information**

**We are a debt collector**

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This is an attempt to collect a debt and any information obtained will be used for that purpose. However, to the extent your original obligation is subject to the automatic stay of bankruptcy or was discharged under the United States Bankruptcy Code, this notice is for compliance with non-bankruptcy law and/or informational purposes only and does not constitute an attempt to collect a debt or to impose personal liability for such obligation. Nothing in this notice means that you're required to repay a debt that's subject to the automatic stay or has been discharged. Any payment you make on the account is voluntary, but if the original obligation is secured by collateral, we retain the rights under any applicable security instrument.

If you are represented by an attorney, please refer this letter to your attorney and provide us with the attorney's name, address, and telephone number.

**Information for Servicemembers and their dependents**

If you or any occupant of your home are or recently were on active Military duty or related active service, you may be eligible for benefits and protections under the federal Servicemembers Civil Relief Act (SCRA), state law, or Chase policy. This includes protection from foreclosure or eviction, and in some cases, interest rate benefits. Some protections also may be available if you are the dependent of an eligible Servicemember. Although Servicemember interest rate benefits under the Servicemembers Civil Relief Act don't allow you to defer payments, some states allow for a payment deferral if certain conditions are met.

For more information, please call Chase Military Services at 1-877-469-0110.

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**Chase**
P.O. Box 469030
Glendale, CO 80246-9030

February 5, 2026

EXHIBIT D

000002 - 1 of 2 NSP0MBV0-Z5 J9970796 000000

JOEL THORARINSON
HEATHER ATAGAN
[redacted] DR E
WILMETTE, IL 60091

**Your application for mortgage assistance is complete**

Account: [redacted]1823
Property Address: [redacted] DR E
WILMETTE, IL 60091

Dear Joel Thorarinson, Heather Atagan:

Thank you for your mortgage assistance application.

We reviewed the information you provided and determined that your application was complete on 02-02-2026. We'll review your complete application and let you know the results by 03-04-2026.

**You're entitled to foreclosure protection**
Because your application is complete, your property is protected from foreclosure activity:

- If a foreclosure action has not yet been filed, we can't make the first notice or filing to begin the foreclosure process while we review your information.
- If a foreclosure action has already been filed, we can't proceed with the foreclosure sale during our review.
- You may also be entitled to additional protection based on state and federal laws.

**We'll let you know if we need more information**
Even though we determined that your application is complete, we may find that we need more information from you, or that documents have expired, during our review. If we do, we'll notify you to explain what else we need and when to return the required information. If we don't receive the information within the requested timeframe, we may not be able to make a timely decision on your application and any foreclosure protection may expire.

We're here to answer your questions. Please call us if you would like to talk about your options. We're available Monday through Friday from 8 a.m. to 7 p.m. Eastern Time. If you're not satisfied with any aspect of our service, please let us know right away and we'll connect you with a supervisor.

Sincerely,

MARIA LUISITA SANTOS
Relationship Manager
Chase
1-877-496-3138; we accept operator relay calls

Esta comunicación contiene información importante acerca de la cuenta. Si tiene alguna pregunta o necesita ayuda para traducirla, comuníquese con nosotros llamando al 1-877-496-3138, de lunes a viernes de 8 a.m. a 7 p.m., hora del Este.

## Important Contact Information

**How to send us information**
If we request additional information, please send it with your full name and account number on each page to:

| | |
|---|---|
| Online: | You can fill out your request for mortgage assistance and upload supporting documents by signing in to your account on chase.com. Then click the three dots next to your home lending account, select Account services and click Mortgage assistance. |
| Fax: | 1-866-282-5682; it's free from any Chase branch |
| Regular Mail: | Chase<br>P.O. Box 469030<br>Glendale, CO 80246-9030 |
| Overnight Mail: | Chase<br>720 S. Colorado Blvd., Suite 210<br>Glendale, CO 80246-1904 |

You can send us a Notice of Error, Information Request or Qualified Written Request as part of the Real Estate Settlement Procedures Act to ask for information or to dispute errors about the servicing of your mortgage loan.

To do so, send us a separate letter that describes the issue and include any supporting documents. Please mail it to our exclusive address for the receipt and handling of these requests:

| | |
|---|---|
| Mail: | Chase<br>Mail Code LA4-6911<br>700 Kansas Lane<br>Monroe, LA 71203-4774 |

## Important Legal Information

**Information about bankruptcy filings**
To the extent your original obligation is subject to the automatic stay of bankruptcy or was discharged under the United States Bankruptcy Code, this notice is for compliance with non-bankruptcy law and/or informational purposes only and does not constitute an attempt to collect a debt or to impose personal liability for such obligation. Nothing in this notice means that you're required to repay a debt that's subject to the automatic stay or has been discharged. Any payment you make on the account is voluntary, but if the original obligation is secured by collateral, we retain the rights under any applicable security instrument.

If you are represented by an attorney, please refer this letter to your attorney and provide us with the attorney's name, address, and telephone number.

**Information for Servicemembers and their dependents**
If you or any occupant of your home are or recently were on active Military duty or related active service, you may be eligible for benefits and protections under the federal Servicemembers Civil Relief Act (SCRA), state law, or Chase policy. This includes protection from foreclosure or eviction, and in some cases, interest rate benefits. Some protections also may be available if you are the dependent of an eligible Servicemember. Although Servicemember interest rate benefits under the Servicemembers Civil Relief Act don't allow you to defer payments, some states allow for a payment deferral if certain conditions are met.

For more information, please call Chase Military Services at 1-877-469-0110.

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**Exhibit E**

| Transactions in Marital Accounts Violating 4/30/25 Agreed Order - Temporary Finacial Matters | | | | |
|---|---|---|---|---|
| **Date** | **Source Account** | **Transfer/Payment** | **Deposits** | **Withdrawals** |
| 5/6/2025 | Joint JP Morgan Checking Account x2151 | To Checking Account x9056 | | -$2,000.00 |
| 5/7/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x9884 | | -$3,900.00 |
| 5/9/2025 | Joint JP Morgan Checking Account x2151 | Payment to American Express Credit Card | | -$35.00 |
| 5/14/2025 | Joint JP Morgan Checking Account x2151 | Payment to American Express Credit Card | | -$75.00 |
| 5/15/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $3,825.00 | |
| 5/15/2025 | Joint JP Morgan Checking Account x2151 | Payment to American Express Credit Card | | -$38.00 |
| 5/15/2025 | Joint JP Morgan Checking Account x2151 | Payment to American Express Credit Card | | -$3,000.00 |
| 5/27/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x9884 | | -$136.00 |
| 5/28/2025 | Deposit via CitiBank | Joint JP Morgan Checking Account x2151 | $1,068.26 | |
| 5/28/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x9884 | | -$5,200.00 |
| 5/30/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $5,000.00 | |
| 7/7/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $5,000.00 | |
| 7/7/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x9884 | | -$1,782.86 |
| 7/10/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x9884 | | -$600.00 |
| 7/10/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x9884 | | -$2,000.00 |
| 8/11/2025 | Deposit via CitiBank | Joint JP Morgan Checking Account x2151 | $9,000.00 | |
| 8/11/2025 | Deposit via CitiBank | Joint JP Morgan Checking Account x2151 | $21,000.00 | |
| 8/12/2025 | Joint JP Morgan Checking Account x2151 | Transfer to HBSC Account | | -$21,000.00 |
| 8/13/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x1498 | | -$437.00 |
| 8/22/2025 | Joint JP Morgan Checking Account x2151 | International Wire Transfer | | -$700.00 |
| 8/29/2025 | Transfer from Joel's Empower Account | Joint JP Morgan Checking Account x2151 | $72,155.29 | |
| 8/29/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x1498 | | -$17,039.66 |
| 8/29/2025 | Joint JP Morgan Checking Account x2151 | Transfer via Citibank | | -$20,000.00 |
| 8/29/2025 | Joint JP Morgan Checking Account x2151 | International Wire Transfer | | -$5,000.00 |
| 9/18/2025 | Joint JP Morgan Checking Account x2151 | Payment to American Express Credit Card | | -$40.00 |
| 9/19/2025 | Deposit via CitiBank | Joint JP Morgan Checking Account x2151 | $3,000.00 | |
| 9/19/2025 | Deposit via CitiBank | Joint JP Morgan Checking Account x2151 | $25,000.00 | |
| 9/19/2025 | Joint JP Morgan Checking Account x2151 | Payment to American Express Credit Card | | -$20,000.00 |
| 9/19/2025 | Joint JP Morgan Checking Account x2151 | Payment to American Express Credit Card | | -$1,803.85 |
| 9/22/2025 | Joint JP Morgan Checking Account x2151 | Transfer via Citibank | | -$1,500.00 |
| 9/30/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $15,000.00 | |

**Exhibit E**

| | | | | |
|---|---|---|---|---|
| 9/30/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x1498 | | -$1,000.00 |
| 9/30/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x8656 | | -$333.43 |
| 10/3/2025 | Deposit via CitiBank | Joint JP Morgan Checking Account x2151 | $3,141.00 | |
| 10/3/2025 | Joint JP Morgan Checking Account x2151 | Transfer to Chase Checking x2573 | | -$3,141.00 |
| 10/21/2025 | Deposit via CitiBank | Joint JP Morgan Checking Account x2151 | $1,367.00 | |
| 10/21/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x1498 | | -$1,111.00 |
| 11/6/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $250.00 | |
| 11/6/2025 | Joint JP Morgan Checking Account x2151 | Payment to Joel's American Express Credit Card | | -$105.31 |
| 11/10/2025 | Joint JP Morgan Checking Account x2151 | Payment to Chase Credit Card x8656 | | -$115.18 |
| 11/28/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $200.00 | |
| 11/28/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $233.00 | |
| 11/28/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $423.00 | |
| 11/28/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $2,000.00 | |
| 11/28/2025 | Joint JP Morgan Checking Account x2151 | Payment to Joel's American Express Credit Card | | -$230.00 |
| 11/28/2025 | Joint JP Morgan Checking Account x2151 | Payment to Joel's American Express Credit Card | | -$222.88 |
| 11/28/2025 | Joint JP Morgan Checking Account x2151 | Transfer to Chase Checking x0759 | | -$346.00 |
| 11/28/2025 | Joint JP Morgan Checking Account x2151 | Domestic Wire Transfer by Joel via Citibank | | -$2,000.00 |
| 11/28/2025 | Joint JP Morgan Checking Account x2151 | Payment to Joel's Chase Credit Card x8656 | | -$365.05 |
| 11/28/2025 | Joint JP Morgan Checking Account x2151 | Payment to Joel's Chase Credit Card x1498 | | -$1,828.00 |
| 12/10/2025 | Joint JP Morgan Checking Account x2151 | Payment to Joel's American Express Credit Card | | -$230.00 |
| 12/19/2025 | Joel's Revolut Account | Joint JP Morgan Checking Account x2151 | $2,200.00 | |
| 12/19/2025 | Joint JP Morgan Checking Account x2151 | Payment to Joel's Chase Credit Card x1498 | | -$2,073.00 |
| **Total** | | | **$169,862.55** | **-$119,388.22** |